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Complaint
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WASHINGTON

ORIGINAL

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR WHATCOM COUNTY

SHANNON A. FRANKS and JANINE L. FRANKS, husband and wife and their marital community, Plaintiffs, vs. CITY OF BELLINGHAM, a municipal corporation of the State of Washington, SETH FLEETWOOD, individually and in his professional capacity, and ERIC JOHNSTON, individually and in his professional capacity, Defendants.	NO. 23 2 01207 37 **COMPLAINT FOR DISCRIMINATION, NEGLIGENT SUPERVISION, RESPONDENT SUPERIOR AND WRONGFUL DISCHARGE**

COME NOW, the above referenced Plaintiffs, by and through the undersigned counsel, and hereby allege against Defendants as follows:

I. PARTIES

1.1. Plaintiffs Shannon A. Franks and Janine L Franks were residents of Whatcom County, Washington at all times relevant to the actions alleged in this Complaint, are wife and husband, and constituted a marital community under

COPPINGER CARTER P.S.
ATTORNEYS AT LAW
100 Central Avenue, Bellingham, WA 98225 | address
www.coppingercarter.com | web
360.676.7545 | phone
360.306.8369 | fax

Washington state law at all times relevant to this action. Plaintiff Shannon A. Franks (herein after "Plaintiff Franks") was an employee of Defendant Bellingham of Bellingham as an electrical specialist during all times relevant to this Complaint.

1.2. Defendant City of Bellingham is a municipal corporation under the laws of the State of Washington (hereinafter "Defendant Bellingham"). Defendant Bellingham is responsible for all acts of its employees and elected officials as agents, representatives and by way of Respondeat Superior. All of Defendant Bellingham's unlawful employment practices and acts toward Plaintiffs, which are the subject of this action, occurred in Whatcom County, Washington.

1.3. Defendant Seth Fleetwood, individually and in his professional capacity (hereinafter "Defendant Fleetwood"), and is believed to be a resident of Whatcom County, Washington at all relevant times. Defendant Fleetwood was the Mayor of Defendant Bellingham working in Whatcom County, Washington at all times relevant to this Complaint.

1.4. Defendant Eric Johnston, individually and in his professional capacity (hereinafter "Defendant Johnston"), and is believed to be a resident of Whatcom County, Washington at all relevant times. Defendant Eric Johnston was employed by Defendant Bellingham as its Director of Public Works in Whatcom County, Washington at all times relevant to this Complaint.

1.5. All acts alleged by Plaintiffs were within the scope of Defendants Fleetwood and Johnston's employment and on behalf of Defendant Bellingham.

II. JURISDICTION AND VENUE

COPPINGER CARTER P.S.
ATTORNEYS AT LAW
100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

2.1. All acts or omissions relevant to this Complaint took place in Whatcom County, Washington.

2.2. This Court has jurisdiction over the parties to and subject matter of this action pursuant to RCW 49.60 *et seq.* and RCW 4.12.025.

2.3. Venue is properly set in Whatcom County, Washington.

2.4. Plaintiffs caused to be properly served upon the City of Bellingham a Notice of Claim for their state law claims on September 1, 2022. Sixty days have elapsed since the Notice of Claim was served.

III. FACTS

PLAINTIFF'S EMPLOYMENT WITH DEFENDANT BELLINGHAM

3.1 On April 20, 2010, Defendant City of Bellingham ("Defendant Bellingham") hired Plaintiff Shannon Franks ("Plaintiff Franks") as a Maintenance Technician in Public Works to repair and replace broke down equipment with a starting annual salary of $54,276.

3.2 Plaintiff Franks was part of the Guild of Pacific Northwest Employees Local union 1937 and was represented by Civil Service. He was eligible for vacation, holiday, and sick leave, along with medical and dental insurance, and retirement benefits.

3.3 As a Maintenance Technician with the Defendant Bellingham's Public Works Department, Defendant Franks worked independently at remote locations throughout Bellingham. The work he performed was considered emergency work because Defendant Bellingham did not have a preventive

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ATTORNEYS AT LAW
100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

maintenance program in place or redundant powers sources at several remote sites.

3.4 Plaintiff Franks started performing preventive maintenance on all Defendant Bellingham's Public Works sites and helped to install generators as needed backup power sources. Through engineering, he created redundancy in all the its remote sites that could be monitored remotely through SCADA. PLC upgrades and a fiber ring installation were the keys to added redundancy and the ability to remotely monitor sites on SCADA.

3.5 Throughout his tenure with Defendant Bellingham, Plaintiff Franks was identified as an asset to the maintenance group and consistently rated as "highly effective," "outstanding," or "exceeds expectations" on his performance evaluations.

3.6 Defendant Bellingham promoted Plaintiff Franks to the position of Plants Maintenance Electrical Specialist in February 2015, at which time his annual salary increased to $64,956. In this role, Plaintiff Franks planned and scheduled work for his crew, monitored emergency work requests, identified what work was needed, wrote work orders, assigned that work to individuals on the crew, and then email the work order to whom he assigned the work with a copy to the initiator of the work request. A copy of the assigned Work Order was also sent to the Planning group, which included Mark Schorr (supervisor), Tobin Hull (mechanical specialist), and JP Saenz (planner). Plaintiff's work did not require site visits nor in person interactions with vendors.

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100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

3.7 By 2021, Plaintiff Franks was earning $95,103.45 per year as an Electrical Specialist, exclusive of benefits. He continued to work independently at remote locations throughout Bellingham. At 56-years of age, he was one of the oldest employees in his department.

3.8 Defendant Seth Fleetwood was elected as mayor of Defendant Bellingham and took office on January 1, 2020. Defendant Fleetwood remained Defendant Bellingham's mayor at all relevant times herein, and all acts as alleged were within the scope of his employment and role as mayor.

COVID

3.9 In early 2020, the Covid-19 pandemic reached Washington State. Defendant Bellingham closed its doors to the public and sent all non-essential workers home, including Plaintiff Franks. Defendant Bellingham provided Plaintiff Franks with 2 laptops, an extra monitor, and an iPad so that he could continue to provide Public Works services from home during the closure. Pursuant to the City Plan by Defendant Bellingham, working alone was mandated.

3.10 Defendant Bellingham also endorsed the use of video teleconferencing in place of in-person meetings. Defendant Bellingham did not require Plaintiff Franks to be physically present on-site, even during Public Works emergencies. Consistent with past practices he assigned the work to other crew members. Plaintiff was responsible for planning and assigning work to the crew and planning for continuous improvement of Defendant Bellingham's plants and remote sites. If an unscheduled work request was received from operations during

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100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

the 40-hour work week, then he would write a Work Order and assign it to a crew member. If the assignment required two employees, such as a confined space entry, then he would assign two employees. He personally did not visit the site. That was the routine and the past practice even before COVID. Plaintiff Franks did not work directly with the public and had not worked with a City vendor for years prior to Covid related closures.

3.11 All of Defendant Bellingham's Maintenance Techs were working from home as well. A key difference was that they were allowed to take a city vehicle home so they could respond to emergency work requests. Plaintiff Franks and Tobin Hull were not given vehicles due to their fully remote work.

3.12 After working from home for over a year under the Covid-19 closures, employees were asked to return to work part time, a couple days a week with the relayed concern that Defendant Bellingham was not collecting all income from the water and sewer billing during Covid, affecting its bottom line, and it was suggested that by working from home positions may be in jeopardy of being deleted. It was believed that this was a voluntary return, but Tobin Hull and Plaintiff would rotate so that one of them was on plant site during the week. There was never an official return to work e-mail about this voluntary request.

3.13 Defendant Bellingham started developing a temporary return-to-work plan ("RWP") in April 2020 and public work employees were informed by email that the return-to-work plan was being developed with the Assistant Director of Operations and Maintenance attaching two examples of RWP's already approved

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100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

for use by other departments and asked that those plans be used a template to develop the team's own RWP. Defendant Bellingham asked that RWPs be consistent across all work groups so that the it provided the same level of personal protective equipment ("PPE") and consistent messaging for each work group. RWPs included Covid-19 Work Safe Guidelines, which stated:

> Crews will be supplied with cloth mask, rubber gloves, sanitary wipes, hand sanitizer and bleach disinfectant spray. CDC recommends wearing cloth face coverings in public settings where other social distancing measures are difficult to maintain (e.g., grocery stores and pharmacies), especially in areas of significant community- based transmission. Individuals should be careful not to touch their eyes, nose, and mouth when removing their face covering and wash hands immediately after removing. Upon return to work, employees are encouraged to follow CDC recommendations and wear the provided cloth mask, disposable gloves and safety glasses.

3.14 Defendant Bellingham's plan of returning to work in 2020 was short-lived, as it once again shuttered its doors and sent its employees home.

3.15 On September 21, 2021, Defendant Mayor Seth Fleetwood ("Defendant Fleetwood") issued Executive Order 2021-02 ("Order") in response to the continuing Covid-19 pandemic. Defendant Fleetwood's Order required all City employees to be fully vaccinated against the COVID-19 virus as a condition of employment no later than December 3, 2021 without any consideration or distinction for those employees whose work did not involve public interaction or who were essentially working alone.

3.16 The Order further required all volunteers and contractors entering into new collective bargaining agreements with the City after September 21, 2021

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360.676.7545 phone
360.306.8369 fax

to be fully vaccinated against the COVID-19 virus by December 3, 2021 to perform work for the City.

3.17 The Order permitted Defendants' employees seeking reasonable accommodations for legitimate medical reasons or sincerely held religious beliefs to apply for an exemption no later than the close of business on October 15, 2021.

3.18 Defendant Bellingham in contradiction to Defendant Fleetwood's executive order, approved the continued use of unvaccinated contractors by "grandfathering in" those contractors already working under pre-existing contracts with the City as part of its contract bargaining/negotiation with the governing union.

3.19 Defendants Bellingham and Fleetwood did not allow any "grandfathering" exemption for any of its own employees.

3.19 In addition to the grandfathered contractors, Defendants Bellingham and Fleetwood allowed visitors whose vaccination status were unknown to visit the same facilities of Defendant Bellingham which were requiring vaccination of their employees. These visitors were memorialized in the visitor entry sign in sheets utilized by Defendant Bellingham during this period.

3.20 In addition to Defendants' grandfathered contractors and visitors, tiny home occupants living on Defendant Bellingham's property were not mandated to be vaccinated.

3.21 Defendants Bellingham and Fleetwood's COVID-19 mandate also failed to exclude those employees who were NOT interacting with the public nor serving in other high risk interactions.

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360.676.7545 phone
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3.22 Defendants Bellingham and Fleetwood's COVID-19 mandate never intended to grant exemptions or exemption related accommodations from Defendants' COVID-19 mandate for its employees who requested them, including Plaintiff Franks.

3.23 Plaintiff Franks has sincerely held religious beliefs against the Covid-19 vaccination and related mandates.

3.24 Plaintiff Franks fully complied with Defendants' requirements for seeking a religious exemption from Defendants' Order for vaccine mandate and associated accommodation based upon his sincerely held religious beliefs.

3.25 On or about October 21, 2021 Defendant Bellingham granted Plaintiff Franks's religious exemption request.

3.26 On or about October 21, 2021 Plaintiff Franks emailed Defendant Bellingham's Human Resources Director Elizabeth Monahan ("Monahan") to in good faith begin the interactive accommodation process contemplated by Title VII. Plaintiff Franks requested that Defendant Bellingham allow him to continue to work from home as accommodation, as he had been doing for the better part of a year without issue.

3.27 On November 10, 2021, Defendant Bellingham's Monahan responded to Plaintiff Franks' request informing him that she had spoken with representatives of Defendant Bellingham's Public Works Department and Defendant Bellingham's legal department. Monahan informed Plaintiff Franks that Defendant Bellingham claimed his position had not been 100% remote in the past

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360.676.7545 phone
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year and could not be remote in the future. Defendant Bellingham requested Franks provide an alternative accommodation proposal.

3.28 Over the next several days, Plaintiff Franks continued to attempt to engage with Defendant Bellingham in the interactive accommodation process. He expressed concern that Defendant Bellingham was being less than transparent since it failed to review his historical security badge access and instead reviewed only a few of those records. He reiterated his request to be allowed to work from home which had proven to be reasonable and effective for over the past year. Alternatively, he asked to be allowed to return to work wearing PPE, observing social distancing, getting periodically tested for Covid-19 and engaging in self-monitoring of symptoms, working a modified shift, or being re-assigned.

3.29 Defendant Bellingham denied all of Plaintiff's requests for accommodation without explanation.

3.30 On November 24, 2021, Public Works Director Eric Johnston ("Defendant Johnston") notified Plaintiff Franks that the City's accommodation decision had not changed. Johnston advised Franks that his next communication from Defendant Bellingham would set a date for them to discuss next steps.

3.31 On November 30, 2021 Defendant Bellingham notified Plaintiff Franks that it intended to terminate his employment for failing to comply with the City's vaccine mandate despite Plaintiff's granted exemption status.

3.32 Although Plaintiff Franks' impending termination was identified as a "Non-Disciplinary Termination," Defendant Johnston scheduled a Loudermill

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100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

hearing.

3.33 On December 3, 2021, during the Loudermill hearing Defendant Johnston repeatedly stated that the only accommodation Defendant Bellingham would consider would be for Plaintiff Franks to get vaccinated. This was, of course, no accommodation at all, and ignored Plaintiff Franks granted exemption status.

3.34 When Plaintiff Franks refused to get the vaccine as he was granted an exemption by the Defendant Bellingham, Defendants Bellingham and Johnston terminated Plaintiff Frank's employment.

3.35 Defendant Bellingham's mandatory vaccination policy provided Plaintiff Franks, in theory but not in practice, the illusory ability to obtain a religious exemption from the vaccine mandate. Defendant Bellingham's refusal to abide by the granted exemption and provide the reasonable, de minimus accommodation of Plaintiff Franks sincerely held religious convictions is the product of Defendants' animus towards, and discrimination against, Plaintiff Franks because of his religious beliefs.

3.36 There is nothing different or unique about Defendant Bellingham that allows Defendant Bellingham to refuse to accommodate its religiously-exempt employees, especially those with no contact with the public, while its peers are able and willing to accommodate their similarly situated employees.

3.37 Due to Defendant Bellingham's unlawful actions in denying Plaintiff Franks a reasonable accommodation for his granted religious exemption, Franks was faced with an immediate "choice" by Defendants Bellingham and Johnston to

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100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

either: (a) receive a COVID-19 vaccine in direct violation of his conscience and sincerely held religious beliefs; or (b) be terminated from employment with the City as a consequence of exercising his fundamental and statutory rights to refuse administration of the Covid-19 vaccines.

3.38 Defendants' religious animus and discrimination are further evidenced by the fact that, while it requires its employees to be vaccinated and refuses to accommodate its religiously-objecting employees, Defendant Bellingham does not require certain contractors to be vaccinated, even though those individuals interact with the public and City staff on a daily basis. If Defendant Bellingham were concerned about potential "outbreaks" caused by unvaccinated individuals on its premises, then it would not exempt large groups of individuals on its premises while refusing to exempt only employees, especially older employees, who object to vaccination on religious grounds and were granted a related exemption.

IV. FIRST CAUSE OF ACTION
(Religious Discrimination in Violation of RCW 49.60 *et. seq.*)

4.1. Plaintiffs restate and reallege the allegations set forth in paragraphs 1.1 through 3.38 above, as if fully set forth herein.

4.2. The Washington Law Against Discrimination, RCW 49.60 *et seq.*, prohibits discrimination in employment on the basis of gender.

4.3. Defendants' conduct constitutes unlawful discrimination against Plaintiffs and created a hostile work environment for Plaintiffs based upon their

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100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

gender in violation of the Washington Law Against Discrimination, resulting in their constructive discharge.

4.4. Plaintiffs are entitled to recover all remedies afforded pursuant to RCW 49.60, *et seq.*, including lost past and future wages, compensatory damages, costs, litigation expenses and attorney fees.

4.5. As a direct and proximate result of Defendants' conduct, Plaintiffs have suffered and continue to suffer injuries and damages including past and future economic loss, pain and suffering, physical injury, emotional distress, loss in quality of life and other general compensatory damages in an amount to be proven at trial.

V. SECOND CAUSE OF ACTION
(Retaliation in Violation of RCW 49.60 *et. seq.*)

5.1 Plaintiffs restate and reallege the allegations set forth in paragraphs 1.1 through 4.5 above, as if fully set forth herein.

5.2 RCW 49.60.210 prohibits employers from discharging or otherwise retaliating against employees for opposing unfair practices in violation of the Washington Law Against Discrimination and/or asserting their constitutionally held rights.

5.3 Defendants' conduct as described above in response to Plaintiffs' opposition to their mandated practices constitutes retaliation.

5.4 As a direct and proximate result of Defendants' conduct, Plaintiffs have suffered and continue to suffer injuries and damages including past and

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ATTORNEYS AT LAW
100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax

future economic loss, pain and suffering, physical injury emotional distress, loss in quality of life and other general compensatory damages in an amount to be proven at trial.

VI. THIRD AND FOUTH CAUSES OF ACTION
(Retaliation and Constructive/Wrongful Discharge in Violation of Public Policy)

6.1 Plaintiffs restate and reallege the allegations set forth in paragraphs 1.1 through 5.4 above, as if fully set forth herein.

6.2 Defendants' conduct towards Plaintiffs was in violation of public policy.

6.3 By the foregoing, Defendants' actions constituted unlawful retaliation against and constructive/wrongful discharge of Plaintiffs for asserting his religious beliefs, opposing discrimination and retaliation.

6.4 As a direct and proximate result of Defendants' conduct, Plaintiffs have suffered and continue to suffer injuries and damages including past and future economic loss, pain and suffering, physical injury, emotional distress, loss in quality of life and other general compensatory damages in an amount to be proven at trial.

VII. FIFTH, SIXTH AND SEVENTH CAUSES OF ACTION
(Negligent Supervision and/or Retention and Respondeat Superior)

7.1 Plaintiffs restate and reallege the allegations set forth in paragraphs 1.1 through 6.4 above, as if fully set forth herein.

7.2 Defendant Bellingham is responsible, under respondeat superior for

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100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
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the deliberate, negligent and/or reckless acts or omissions of their supervisory, managerial and other personnel and employees done against Plaintiffs in the course of their employment including but not limited to Defendants Fleetwood and Johnston.

7.3 Defendant Bellingham knew, or in the exercise of reasonable care, should have known, that Defendant Fleetwood and Johnston presented a risk of harm to other employees' employment status because of discrimination based on religion, age and retaliation for asserting legal rights, such as opposing mandates violating one religious beliefs, and targeting employees granted religious exemptions with discriminatory and retaliatory treatment, and Defendant Bellingham's failure to adequately supervise its agents and mandates was the proximate cause of Plaintiffs' injuries alleged herein.

VIII. RELIEF REQUESTED

WHEREFORE, Plaintiffs pray that the Court grant them the following relief:

8.1 For damages for lost compensation, including but not limited to unpaid wages and benefits, both past and future including back pay, in an amount to be proven at trial;

8.2 For general damages for emotional distress, suffering, physical injury, loss of enjoyment/quality of life, and injury to reputation in an amount to be proven at trial;

8.3 For prejudgment interest;

8.4 For any tax relief warranted;

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100 Central Avenue, Bellingham, WA 98225 address
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360.676.7545 phone
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8.5 For Plaintiffs' reasonable and actual attorney' fees, costs of suit and expenses incurred pursuant to RCW 49.48.030 and/or 49.60.030(2); and

8.6 Such other and further relief as this Court deems just and proper.

DATED this 9th day of August, 2023.

COPPINGER CARTER P.S.

By: Carrie M. Coppinger Carter
Carrie Coppinger Carter, WSBA #28817
Attorney for Plaintiffs

COPPINGER CARTER P.S.
ATTORNEYS AT LAW
100 Central Avenue, Bellingham, WA 98225 address
www.coppingercarter.com web
360.676.7545 phone
360.306.8369 fax